unless the act or omission of the Government, its officers, agents, servants and employees is the sole, competent, and producing cause of such claim, loss, damages, injury, or liability.

§ 6–7.151–17 Commercial warranty.

COMMERCIAL WARRANTY

The Contractor agrees that the supplies or services furnished under this contract shall be covered by the most favorable commercial warranties the Contractor gives to any customer for such supplies or services and that the rights and remedies provided herein are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

§ 6–7.151–18 Price warranty.

PRICE WARRANTY

The Contractor warrants that the prices of the items set forth herein do not exceed those charged by the Contractor to any other customer purchasing the same items in like or comparable quantities.

§ 6–7.151–19 Availability of funds.

The following clause is applicable to certain types of contracts whose performance periods cross fiscal years. These contracts are identified in Subpart 6–3.4 of this chapter.

AVAILABILITY OF FUNDS

Funds are not presently available for performance under this contract beyond June 30, 19__. The Government's obligation for performance of this contract beyond this date is contingent upon the availability of appropriated funds from which payment for the contract purposes can be made. No legal liability on the part of the Government for payment of any money for performance under this contract beyond June 30, 19__, shall arise unless and until funds are made available to the Contracting Officer for such performance and notice of such availability, to be confirmed in writing by the Contracting Officer, is given to the Contractor.

[SEAL] WILLIAM B. MACOMBER, Jr.,
Deputy Under Secretary for Administration.

OCTOBER 10, 1969.

[F.R. Doc. 69–12676; Filed, Oct. 22, 1969; 8:48 a.m.]

Chapter 101—Federal Property Management Regulations

SUBCHAPTER H—UTILIZATION AND DISPOSAL

PART 101–46—UTILIZATION AND DISPOSAL OF PERSONAL PROPERTY PURSUANT TO EXCHANGE/SALE AUTHORITY

Subpart 101–46.4—Disposal

DOMESTIC AND OVERSEAS REPORTING

This amendment revises § 101–46.407 so that it will clearly provide for a summary of exchange transactions and a summary of sale transactions which occur in the States of the United States, the District of Columbia, Puerto Rico, and the Virgin Islands, and similar but separate summaries of such transactions which occur elsewhere in the world.

Section 101–46.407 is revised as follows:

§ 101–46.407 Reports.

As soon as possible after the close of each fiscal year, but in no event later than 90 calendar days after such close, executive agencies shall submit a summary report in letter form on the transactions made pursuant to this part during the fiscal year except for transactions involving books and periodicals. Negative reports are required. Total acquisition cost for property exchanged, and total acquisition cost for property sold, shall be furnished by two-digit Federal Supply Classification Groups. The above data shall be broken down to show transactions in two categories: (a) In the States of the United States, the District of Columbia, Puerto Rico, and the Virgin Islands; and (b) in all other areas of the world. The summaries shall not include any property initially designated for exchange/sale but which was transferred for further Federal utilization. Reports shall be addressed to the Commissioner, Property Management and Disposal Service, General Services Administration, Washington, D.C. 20405.

(Sec. 205(c), 63 Stat. 390; 40 U.S.C. 486(c))

Effective date. This amendment is effective upon publication in the FEDERAL REGISTER.

Dated: October 17, 1969.

ROBERT L. KUNZIG,
Administrator of General Services.

[F.R. Doc. 69–12707; Filed, Oct. 22, 1969; 8:50 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4717]

[Fairbanks 030632]

ALASKA

Modification of Powersite Classification No. 445 (Yukon River Near Rampart, Alaska)

In order to permit the construction of a public facility in the public interest, and in reliance upon the assurance of the State of Alaska that it will do all things necessary and appropriate in connection with said construction to preserve and protect the environment and natural resources; Now, Therefore,

By the authority contained in the Act of March 3, 1879 (20 Stat. 394; 43 U.S.C. 31), and 1950 Reorganization Plan No. 3 (64 Stat. 1262), it is ordered as follows:

Public Land Order No. 3520 of January 5, 1965, which established Powersite Classification No. 445, is hereby modified to the extent necessary to permit the State of Alaska to locate a right-of-way under R.S. 2477 (43 U.S.C. 932) for the construction of a State highway running from Livengood northwesterly to the Yukon River; however, this powersite modification is subject to the condition that should the land traversed by the right-of-way be required for reservoir or power purposes, any improvements or structures thereon, when found by the Secretary of the Interior to interfere with reservoir or power development, shall be removed or relocated to eliminate interference with such development at no cost to the United States, its permittees or licensees.

WALTER J. HICKEL,
Secretary of the Interior.

OCTOBER 15, 1969.

[F.R. Doc. 69–12683; Filed, Oct. 22, 1969; 8:48 a.m.]

[Public Land Order 4718]

[Wyoming 19178]

WYOMING

Partial Revocation of Executive Order No. 5327 and Public Land Order No. 4522

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 5327 of April 15, 1930, and Public Land Order No. 4522 of September 13, 1968, withdrawing oil shale deposits and lands containing such deposits, are hereby revoked so far as they affect the following described lands except for the oil shale deposits therein:

SIXTH PRINCIPAL MERIDIAN

T. 19 N., R. 109 W.,
Sec. 30, lot 4, SE¼SW¼, W½W½SW¼SE¼, NE¼NW¼SW¼SE¼, W½NW¼NE¼SW¼SE¼.

The areas described aggregate 94.70 acres in Sweetwater County.

2. Pursuant to the Act of September 19, 1964 (78 Stat. 986; 43 U.S.C. 1411–18), the lands are hereby classified for sale under the Public Land Sale Act (78 Stat. 988; 43 U.S.C. 1421, 1427), subject to the regulations in 43 CFR 2243.2.

HARRISON LOESCH,
Assistant Secretary of the Interior.

OCTOBER 16, 1969.

[F.R. Doc. 69–12635; Filed, Oct. 22, 1969; 8:45 a.m.]

[Public Land Order 4719]

[Sacramento 1798, 1799, 1800, 2293]

CALIFORNIA

Withdrawal for National Forest Administrative Sites and Recreation Areas

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described national forest lands